IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
FIRST DISTRICT

Case No. 1D2025-3158

RAYBURN SCOTT,
Appellant,

v.

BURLINGTON STORES, INC.,
Appellee.

L.T. No. 2025-101900/25-093

APPELLEE'S MOTION TO DISMISS APPELLANT'S APPEAL

Luis A. Santos, Esq.
Florida Bar No. 84647
Sara K. Finnigan, Esq.
Florida Bar No. 1032142
FORDHARRISON, LLP
300 South Orange Avenue, Suite 1300
Orlando, FL 32801
(407) 418-2300
lsantos@fordharrison.com
sfinnigan@fordharrison.com
Counsel for Appellee Burlington Stores, Inc.

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Appellee, Burlington Stores, Inc. (“Burlington”), by and through undersigned counsel, pursuant to Fla. R. App. P. 9.300, hereby respectfully moves this Court to dismiss Appellant Rayburn Scott’s (“Appellant”) appeal for failure to timely file his notice of appeal with this Court as required by the Florida Rules of Appellate Procedure. Alternatively, Burlington seeks dismissal of this appeal as a sanction for Appellant’s filing of a frivolous and procedurally deficient Initial Brief. In support of this Motion, Burlington states as follows:

I. Factual Background

1. This matter arises from Appellant’s Complaint of Discrimination, FCHR No. 2025101900/EEOC No. 15D-2024-01390, filed with the Florida Commission on Human Relations (“FCHR”) in August 2024 (“Complaint”).

2. In the Complaint, Appellant alleged that Burlington retaliated against him “due to negation of wages” and discriminated against him based on his African-American race when it failed to hire Appellant for a part-time retail stocking associate position at a store in Tampa, Florida. (Exhibit A, Complaint of Discrimination). Appellant alleged that Burlington violated the Florida Civil Rights Act of 1992 (“FCRA”).

3. The FCHR investigated the allegations in Appellant’s Complaint, and, on February 11, 2025, issued a determination of “no reasonable

cause" to believe that discrimination or retaliation of any kind had occurred. (Exhibit B, No Reasonable Cause Determination).

4. On or about February 17, 2025, Appellant filed a Petition for Relief ("Petition") with the FCHR, which transmitted the Petition to the Florida Division of Administrative Hearings ("DOAH") for an administrative hearing. (Exhibit C, Transmittal of Petition).

5. On April 30, 2025, DOAH Administrative Law Judge ("ALJ") Andrew D. Manko held a final administrative hearing pursuant Chapter 120, Florida Statutes, and Florida Administrative Code Chapter 28-106, Parts I and II.

6. At the final hearing, Burlington presented credible evidence that its virtual recruiting assistant did not know Appellant's race at any time during Burlington's entirely remote initial screening process. Burlington also presented credible evidence that it did not select Appellant for the part-time retail stocking associate role strictly because Appellant responded "No" to a question whether the non-negotiable starting hourly rate of $12.00 offered for the position was "acceptable." (See Exhibit D, ALJ's Recommended Order).

7. ALJ Manko issued a Recommended Order on June 24, 2025, finding that the weight of the credible evidence demonstrated that Burlington never knew Appellant's race during the initial screening phrase; and that Appellee's decision not to select Appellant for the applied-for

position was based solely on Appellant's rejection of the $12.00 per hour—non-negotiable—pay rate. (See Ex. D, ¶ 11). Based on the findings of fact, the ALJ concluded that Appellant failed to prove a prima facie case of FCRA discrimination or retaliation as a matter of law.

8. The DOAH advised Appellant of his right to file written exceptions to the recommended order within fifteen (15) days of the recommended order. (Ex. D, p. 14). Appellant did not submit any exceptions.

9. On September 11, 2025, the FCHR issued its Final Order, adopting the ALJ's findings of fact and conclusions of law in their entirety. (See Exhibit E, FCHR Final Order).

10. Notably, the Final Order contained "Notice of Appeal Rights" advising Appellant of his appeal rights as follows:

> The parties have the right to seek judicial review of this Final Order pursuant to Section 120.68, Florida Statutes, and Florida Rule of Appellate Procedure 9.110. Such proceedings are commenced by emailing clerk@fchr.myflorida.com, and a second copy with the filing fee prescribed by law, with the District Court of Appeal, First District, or with the District Court of Appeal in the Florida Appellate District where the party resides. The Notice of Appeal must be filed within 30 days of the date this Order is filed with the Clerk of the Commission.

(Ex. E, p. 2 (emphases added)). Accordingly, to effectively appeal the FCHR's Final Order, Appellant was required both to (1) email the FCHR Clerk and (2) file his notice of appeal with the appropriate appellate court, within thirty (30) days of September 11, 2025—or by October 13, 2025

(technically, thirty-two (32) days due to the thirtieth and thirty-first days falling on a Saturday and Sunday, respectively).

11. On October 9, 2025, Appellant emailed the FCHR Clerk his purported "Notice of Appeal" and accompanying documents. (See Exhibit F, October 9, 2025 Email).

12. However, Appellant did not complete Step 2. He did not, by the thirtieth (or the thirty-second) day, file a Notice of Appeal, or the requisite copy, either with the First District Court of Appeal or the District Court of Appeal in the Florida Appellate District where Appellant resided—i.e., the Second District.

13. On December 2, 2025—notwithstanding Appellant's failure to timely complete Step 2 of the judicial review initiation process—the FCHR Clerk transmitted a "Notice of Appeal Transmittal Form" to this Court.

14. Only after that did Appellant file what he called "Amended[1] Notice[s] of Appeal" on December 4, 9, and 11, 2025[2]—all well beyond the thirty-day deadline mandated by the Florida Rules of Appellate Procedure and the FCHR's Final Order. (See Exhibit G, Appellant's Untimely Notices of Appeal).

[1]Appellee is not aware of Appellant filing any "original" Notice of Appeal with any District Court of Appeal.

[2]All three (3) Notices of Appeal were duplicate.

15. This appeal went forward notwithstanding the deficient judicial review initiation process.

16. Pursuant to Fla. R. App. P. 9.110(f), Appellant's Initial Brief was due on February 10, 2026.[3]

17. After Appellant failed to timely file his Initial Brief, on February 16, 2026, this Court entered an Order directing Appellant either to file, within twenty (20) days, his Initial Brief, or show cause why this appeal should not be dismissed. (See Order dated February 16, 2026).

18. On March 3, 2026, Appellant filed his Initial Brief, riddled with frivolous allegations, unsubstantiated and uncited facts, various exhibits which have no bearing on his claims, and conclusory legal arguments. In short, the Initial Brief entirely failed to comply with Fla. R. App. P. 9.210(b) setting forth the specific requirements of an Initial Brief.

19. For the reasons set forth above and below, Appellee respectfully requests that this Court dismiss Appellant's appeal because he failed to comply with the Florida Rules of Appellate Procedure by (1) failing to timely file his Notice of Appeal with this Court, and (2) filing a frivolous and procedurally deficient Initial Brief to which Burlington cannot meaningfully respond.

[3]Citations to the Initial Brief are "(IB at __)."

II. Memorandum of Law.

A. Dismissal of Appellant's appeal is warranted for failure to comply with Florida Rules of Appellate Procedure.

Because Appellant did not timely file a Notice of Appeal with the Clerk of this Court as required under Fla. R. App. P. 9.110(c) and the FCHR Final Order, this appeal must be dismissed. It is well-settled that Florida appellate courts must dismiss an appeal if it was not initiated within the applicable time limit. See, e.g., *Roadrunner Const., Inc. v. Dep't of Fin. Servs., Div. of Workers' Comp.*, 33 So. 3d 78, 79 (Fla. 1st DCA 2010) (dismissing appeal of final order of administrative agency for failure to timely file notice of appeal).

For judicial review of administrative agency action to proceed, "[a]ll proceedings shall be instituted by filing a notice of appeal or petition for review in accordance with the Florida Rules of Appellate Procedure within 30 days after the rendition of the order being appealed." Fla. Stat. § 120.68(2)(a). Pursuant to section 120.68, Fla. R. App. P. 9.190 provides that an appeal from final agency action "shall be commenced in accordance with rule 9.110(c)." Fla. R. App. P. 9.190(b)(1).

The Florida Supreme Court established the time limit for initiating an appeal from a final administrative order when it adopted Fla. R. App. P. 9.110(c). See *Roadrunner Const.*, 33 So. 3d at 79. The plain language of Fla. R. App. P. 9.110(c) provides: "[T]he appellant must file the notice with

the clerk of the lower administrative tribunal within 30 days of rendition of the order to be reviewed, and must also file a copy of the notice, accompanied by any filing fees prescribed by law, with the clerk of the court." Fla. R. App. P. 9.110(c) (emphasis added); see *Pearce v. State, Dep't of Rev.*, 6 So. 3d 614, 614 (Fla. 2d DCA 2009) (dismissing appeal as untimely under Fla. R. App. P. 9.110(c)). Accordingly, Fla. R. App. P. 9.110(c) sets forth a two-step mandatory procedure for initiating judicial review of final agency action: (1) an appellant must file a notice with the Clerk of the applicable agency (here, the FCHR), and (2) an appellant must also file a copy of the notice with the Clerk of this Court.[4]

Appellant's appeal must be dismissed because he failed to timely, within the thirty-day mandatory statutory period, file a copy of the notice of appeal with this Court as required. As an initial matter, the FCHR Final Order clearly instructed Appellant on the steps he must take to properly seek judicial review—it specifically stated that "proceedings are commenced by emailing clerk@fchr.myflorida.com, and a second copy with the filing fee prescribed by law, with the District Court of Appeal, First District." (Ex. E, p. 2). Appellant therefore received proper instructions on

[4] Fla. R. App. P. 9.020(c) defines "court" as including the district courts of appeal, therefore Fla. R. App. P. 9.110(c)'s reference to "clerk of the court" is to the clerk of this First District Court of Appeal for purposes of this appeal.

how to properly commence his appeal, and failed to follow them. See *Butterfield v. Dep't of Env. Reg.*, 470 So. 2d 95, 97 (Fla. 5th DCA 1985) (dismissing appeal for lack of jurisdiction because appellant "should have followed the instructions in the final order").

Despite such instructions, Appellant failed to complete both required steps. It is undisputed that Appellant did not file a Notice of Appeal with this Court until December 4, 2025 at the earliest—fifty-two (52) days after his thirty-day deadline ran out. (See Ex. G).[5] This Court therefore should dismiss Appellant's appeal because of Appellant's failure to properly and timely complete both steps necessary to initiate this appeal.

B. Dismissal is further warranted as a sanction for Appellant's frivolous and procedurally deficient Initial Brief.

Although there is no dispute that Appellant failed to follow the Florida Rules of Appellate Procedure, additionally, Burlington respectfully asks this Court to exercise its discretion to sanction Appellant's frivolous Initial Brief and dismiss his appeal outright. See Fla. R. App. 9.410(a) (providing that Court may impose sanctions for the filing of any brief that is frivolous or in bad faith).

i. Appellant's Initial Brief Is Procedurally Deficient.

As an initial matter, Appellant's Initial Brief fails to comply with the Florida Rules of Appellate Procedure. Fla. R. App. P. 9.210 sets forth the

[5] In an abundance of caution, Burlington reviewed the dockets for all six District Courts of Appeal and did not locate any timely Notice of Appeal filed by Appellant.

specific requirements for Appellant's Initial Brief, almost all of which Appellant failed to comply with. Specifically, Appellant's Initial Brief failed to include the following sections:

> (1) a table of citations with cases listed alphabetically, statutes and other authorities, and the pages of the brief on which each citation appears;
> (2) a statement of the case and of the facts, which must include the nature of the case, the course of the proceedings, and the disposition in the lower tribunal, with references to the appropriate pages of the record or transcript;
> (3) a summary of argument, suitably paragraphed, condensing succinctly, accurately, and clearly the argument actually made in the body of the brief, which should not be a mere repetition of the headings under which the argument is arranged;
> (4) argument with regard to each issue, with citation to appropriate authorities, and including the applicable appellate standard of review;

First, Appellant's Initial Brief is entirely devoid of a table of citations. Instead, Appellant provides a "Statutes and Acts" section, which contains various references to the statutes including the National Labor Relations Act (entirely unrelated to his claims under the FCRA) and conclusory arguments about what these various statutes mean. (See IB at pp. 5-6). There is no meaningful way to assess the authorities on which Appellant relies or otherwise determine how these various "statutes and acts" relate to his argument.

Second, Appellant's Initial Brief fails to contain a coherent statement of the case and facts describing the proceedings before the lower administrative tribunal and the basis for his appeal. Notably, Appellant fails

to include references to the appropriate pages of the record or transcript. This Court is not required to scour the record in search for evidence that may be helpful to Appellant or substantiate his arguments. See *Greenfield v. Westmoreland*, 156 So. 3d 1, 1 (Fla. 3d DCA 2007) ("In fact-intensive appeals, frequent citations to the record are required"; "[i]t is not a court's role to scour the record for facts or arguments that a party could have raised . . . on appeal."); *Mech v. Brazilian Waxing By Sisters, Inc.*, 349 So. 3d 453, 454, n.1 (Fla. 4th DCA 2022) ("It is not the responsibility of the Court to dig through the record to locate the basis for a party's argument." (citation omitted)).

Third, Appellant fails to include a summary of the argument, or fourth, any argument with regard to each issue. It is entirely unclear what issues Appellant asserts as the basis for his appeal, much less what arguments he makes in support of each unidentified issue. Instead, a cursory reading of Appellant's Initial Brief reveals that it is entirely without merit—it contains nonsensical, rambling allegations, and does not set forth a meaningful basis for this Court to review the FCHR's Final Order. Appellant further fails to comply with Fla. R. App. P. 9.045(b) governing line spacing, type size, and typeface, despite his certificate of compliance affirming to this Court that his brief "complies with the font requirements of Florida Rule of Appellate Procedure 9.045(b)." (IB at p. 36).

ii. Appellant Waived His Appellate Rights.

Appellant's Initial Brief is frivolous because Appellant also failed to timely file written exceptions to ALJ Manko's June 24, 2025 Recommended Order. Although his Initial Brief is difficult to decipher, it appears that Appellant is challenging the Final Order, which adopted the findings of fact and conclusions of law from the Recommended Order. Appellant's failure to timely file written exception means he waived his right to challenge DOAH's findings of fact or the FCHR's Final Order accepting those findings of fact. See *Couch v. Comm'n on Ethics*, 617 So. 2d 1119, 1124 (Fla. 5th DCA 1993); see also, *Colonnade Med. Ctr., Inc. v. State, Agency for Health Care Administration*, 847 So. 2d 540, 542 (Fla. 4th DCA 2003) (where appellant failed to timely file exceptions to recommended order, it failed to challenge factual findings, and cannot do so for first time on appeal); *L.P. v. Dep't of HRS*, 655 So. 2d 1182, 1183 (Fla. 1st DCA 1995) (per curiam) ("Appellant has waived his right to challenge this finding [of fact] . . . as he failed to file an exception to the recommended order's finding of fact and thus failed to preserve the issue for appellate review."); *Envtl. Coalition of Fla., Inc. v. Broward Cnty.*, 586 So. 2d 1212, 1213 (Fla. 1st DCA 1991) ("Having filed no exceptions to the findings of fact contained in the recommended order, Environmental Coalition has thereby expressed its agreement with, or at least waived any objection to, those findings of fact.").

Appellant's failure to file written exceptions to the Recommended Order but nonetheless attempting to challenge the DOAH's factual findings in his Initial Brief renders his Initial Brief frivolous. Accordingly, Burlington respectfully asks that this Court dismiss Appellant's appeal outright for filing a frivolous and procedurally deficient Initial Brief. See, e.g., *Gutierrez v. Gutierrez*, 399 So. 3d 1185, 1187 (Fla. 3d DCA 2024) (on order to show cause, dismissing pro se appellant's appeal in part for violation of Florida Rule of Appellate Procedure 9.210(b) in multiple, material ways).

WHEREFORE, Appellee Burlington Stores, Inc. respectfully requests that this Court enter an order dismissing the appeal due to Appellant's failure to timely file a notice of appeal with this Court under Fla. R. App. P. 9.110(c) and Appellant's filing of a frivolous and procedurally deficient Initial Brief, and granting such other and further relief as this Court deems just and proper.

Respectfully submitted this 8th day of April, 2026.

/s/ Sara K. Finnigan
Attorney

Luis A. Santos, Esq.
Florida Bar No. 84647
Sara K. Finnigan, Esq.
Florida Bar No. 1032142
FORDHARRISON, LLP
300 South Orange Avenue, Suite 1300
Orlando, FL 32801
(407) 418-2300
lsantos@fordharrison.com
sfinnigan@fordharrison.com
Counsel for Appellee Burlington Stores, Inc.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on April 8, 2026, a true and correct copy of the foregoing was filed on the Florida Courts E-Filing Portal and a copy has been provided via e-mail according to the below:

RAYBURN R. SCOTT, pro se Appellant
4701 Dragon Tail Ct.,
Valrico, FL 33594
RayburnScott@outlook.com

/s/ Sara K. Finnigan
Attorney

Luis A. Santos, Esq.
Florida Bar No. 84647
Sara K. Finnigan, Esq.
Florida Bar No. 1032142
FORDHARRISON, LLP
300 South Orange Avenue, Suite 1300
Orlando, FL 32801
(407) 418-2300
lsantos@fordharrison.com
sfinnigan@fordharrison.com
Counsel for Appellee Burlington Stores, Inc.

CERTIFICATE OF COMPLIANCE

I certify that this document complies with the font requirements of Florida Rule of Appellate Procedure 9.045(b) (Arial 14-point) and with the word count limit of the applicable rule, and that it contains _____ words, excluding the caption, cover page, table of contents, table of citations, certificate of compliance, certificate of service and signature block, as Rule 9.045(e) provides.

/s/ Sara K. Finnigan
Attorney

Luis A. Santos, Esq.
Florida Bar No. 84647
Sara K. Finnigan, Esq.
Florida Bar No. 1032142
FORDHARRISON, LLP
300 South Orange Avenue, Suite 1300
Orlando, FL 32801
(407) 418-2300
lsantos@fordharrison.com
sfinnigan@fordharrison.com
Counsel for Appellee Burlington Stores, Inc.